

HOUSE No. 1251

The Commonwealth of Massachusetts

PRESENTED BY:

Jay D. Livingstone

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to transportation network company fees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>1/16/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>5/22/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>

HOUSE No. 1251

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 1251) of Jay D. Livingstone relative to transportation network company fees. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to transportation network company fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 8 of Chapter 187 of the Acts of 2016 is hereby amended by striking
2 (b) and replacing with the following section:

3 (b) Pursuant to Section 23 of Chapter 176 of the Acts of 2022, each transportation
4 network company shall submit to the director of the division established in the number of rides
5 from the previous month that originated in each city or town and the amount collected from
6 rider-assessments. Notwithstanding any other law, a rider-assessment is to be charged as follows:

7 (i) 6.25% of the total fare for a pre-arranged ride

8 (ii) A rider assessment shall not apply to a pre-arranged ride requested or selected by a
9 rider who has requested or selected the pre-arranged ride through a program established by a
10 public entity to provide transportation network services to individuals, including those who are
11 eligible for paratransit services.

Not later than June 30, the director shall post on the division's website the aggregate number of rides from the previous calendar year originating within each city or town.

SECTION 3. Section 1 of Mass General Laws Chapter 159A½ is amended by adding the following definitions:

“For-Hire Transportation Trip”, a ride in which, prior to the commencement of the ride, a passenger requests a pre-arranged ride through the transportation network company's digital network as a single passenger between points chosen by the passenger, regardless of the number of stops. This shall not include transportation provided by, or pursuant to a contract with a state agency or an institution.

SECTION 4. Section 2 of Chapter 159A½ as appearing in the 2016 Official Edition, is amended as follows:

(d) A transportation network company shall provide clear and conspicuous transportation fare estimates to riders at all times, including during surge pricing, high volume and demand times; provided however, the per-ride assessment shall not apply to a pre-arranged ride requested or selected by a rider who has requested or selected the pre arranged ride through a program established by a public entity to provide transportation network services to individuals, including those who are eligible for paratransit services.. Fare estimates shall include a clear rate estimate or the amount of price increase resulting from surge pricing or increased demand and shall show the price difference between the cost of a shared-ride and a single-occupancy ride.

SECTION 5. Section 10 of Chapter 159A½ as appearing in the 2016 Official Edition, is amended as follows:

33 (a) A municipality that accepts the provisions of this section, may impose a congestion
34 assessment of no more than \$2.25 per ride. These funds would be dedicated for municipal
35 investment in public transportation, bicycle and pedestrian investments, and electric vehicle
36 charging infrastructure.

37 (b) No municipality or other local state entity, except the Massachusetts Port Authority,
38 may: (i) require any additional license for a transportation network company or transportation
39 network driver; or (ii) subject a transportation network company to the municipality's or other
40 local or state entity's rates or other requirements, including but not limited to entry or operational
41 requirements; provided, however, that a municipality or other local or state entity may regulate
42 traffic flow and traffic patterns to ensure public safety and convenience.

43 SECTION 6. Section 18 is hereby repealed.

44 SECTION 7. Section 10 is hereby repealed.